

26STLC01709 26STLC01709

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-31

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Case Number: 26STLC01709 Hearing Date: August 31, 2026 Dept: 25

HEARING DATE: Mon., August 31, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Vandever

v. Solheim Senior Community COMP. FILED: 03-13-26

CASE NUMBER: 26STLC01709

NOTICE: OK

PROCEEDINGS: PETITION

TO COMPEL CONTRACTUAL ARBITRATION AND STAY JUDICIAL PROCEEDINGS

MOVING PARTY: Defendant

Solheim Senior Community

RESP. PARTY: Plaintiff Jennifer Vandever

PETITION TO COMPEL ARBITRATION AND
STAY PROCEEDINGS

(Code Civ. Proc.,
§ 1281.2, et seq.; 9
U.S.C. § 1, et seq.)

TENTATIVE RULING:

The Court GRANTS Solheim Senior
Community's motion to compel arbitration.

The Court

STAYS proceedings pending the outcome of arbitration.

Solheim is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: Filed
on August 18, 2026 [] Late [] None

REPLY: Filed
on August 24, 2026 [] Late [] None

ANALYSIS:

Jennifer Vandever sued Solheim Senior Community for breach of contract and fraud stemming from Solheim's alleged lack of adequate care for Vandever's mother, Ruth Vandever. Solheim moves to compel arbitration and stay these proceedings. (To distinguish Jennifer and Ruth, the Court refers to them by their first names.)

Arbitration

agreements are valid, irrevocable, and enforceable, except on such grounds that exist for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) In ruling on a motion to compel arbitration, "the court must first determine whether the parties actually agreed to arbitrate the dispute," and "[g]eneral principles of California contract law help guide the court in making this determination." (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.) The party moving to compel

arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc., § 1281.2.)

Jennifer

signed a Residence and Service Agreement which contains an arbitration clause. If the agreement applies, there is no dispute

that this action is within its scope. In

any event, the agreement delegates to the arbitrator the question whether a dispute is within the agreement's reach.

(Consumer

Advocacy Group v. Walmart Inc. (2025) 112 Cal.App.5th 679, 690.)

Jennifer concedes that she signed the

agreement, but argues that under Harrod v. Country Oaks Partners, LLC (2024)

15 Cal.5th 939, Solheim needs to provide a written power of attorney showing

that she had the authority to sign on Ruth's behalf. Whether Harrod applies to a facility

like Solheim or not, Ruth isn't a party to this lawsuit and Solheim isn't

seeking to compel Ruth to arbitrate. So

whether Jennifer could bind Ruth to arbitrate is not now an issue. The only issue is whether Jennifer bound

herself to arbitrate, and the arbitration agreement that she signed is

clear on that point: "If someone other

than Resident signs this arbitration clause on behalf of Resident, then he/she

understands and agrees that he/she is agreeing to arbitration on behalf of

Resident as well as on behalf of him/herself as an individual." (Emphasis added.)

Jennifer

also argues that Solheim waived its right to compel her to arbitrate her claims

by its own litigation conduct. Since

being served, Solheim has taken no affirmative action to proceed in court: It filed a challenge to the initially

assigned judge, filed a document seeking an automatic extension of its time to respond

to the complaint, and then filed this petition.

It could hardly have done less in this forum; its conduct does not evince

an intent to relinquish a right to arbitrate in favor of judicial proceedings.

The Court

therefore GRANTS Solheim's petition to compel arbitration.

The Court STAYS proceedings pending the outcome of

arbitration. (Code Civ. Proc., § 1281.4;

accord 9 U.S.C. § 3.) The Court sets a

conference on the status of the arbitration for Monday, March 1, 2027 at 9:30
a.m. in Department 25 of the Spring Street Courthouse.

Solheim is to give notice.